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PART II

Statutory Notifications (S. R. O.)

SENATE SECRETARIAT

NOTIFICATION

Islamabad, the 16th April, 2015

S. R. O. 329(I)/2015.—The following amendments made by the Senate regarding amendments in rules 58, 67, 194 and insertion of new rules 172A, 172B and 265A in the Rules of Procedure and Conduct of Business in the Senate, 2012, on 16th April, 2015, under rule 277 of the Rules, are published for general information:—

(1) that in the Rules of Procedure and Conduct of Business in the Senate, 2012, for rule 58, the following shall be substituted, namely:—

“58. No publicity of answers to questions in advance.—Answers to questions which Ministers propose to give in the Senate shall be placed on the members’ desk as well as shall be electronically sent to the members two hours before the commencement of question hour and shall not be released for publication until the answers have actually been given on the floor of the Senate or laid on the Table.”.

(2) that in rule 67,—

(1409)

- (i) for the word "one", the word "two" shall be substituted; and
- (ii) for the "full stop" occurring at the end a "colon" shall be substituted and thereafter, the following proviso shall be added, namely:—

"Provided that the second matter shall not be raised by the same member who has raised the first matter."
- (3) that after rule 172, the following new Heading and Rules shall be added, namely:—

"COMMITTEE OF THE WHOLE HOUSE"

172A. Constituting the Committee.—The House may constitute itself into a Committee of the Whole on a motion by the Leader of the House or Leader of the Opposition, as the case may be. When the House constitutes itself into a Committee of the Whole, it functions as one Committee acting upon any matter(s) referred by the House and conducts its proceedings like a regular Committee with its membership composed of all the members of the House:

Provided that if a motion to constitute the House into a Committee of the Whole is not passed, a similar motion shall not be presented within the same session.

172B. Proceedings.—(1) The Chairman or any member nominated by the Chairman shall preside over the Committee.

(2) The Committee shall conduct business only when there is a quorum. If there is no quorum, the Chairman or the person nominated by the Chairman to preside shall immediately suspend its proceedings.

(3) In addition to his vote as a member, the Chairman or the person nominated by the Chairman to preside shall, in the event of equality of votes, have a casting vote.

(4) Documents and papers in possession of the House or the Senate Secretariat may be called for by any member and read by the Secretary Senate for the information of the Committee unless the Committee orders otherwise. Resource persons and/or technical assistants may be invited to attend the proceedings, and upon permission of the Chairman, may directly answer questions asked and inquiries made by the members.

(5) When a Committee of the whole has concluded consideration of a matter referred to it, the Leader of the House or the Leader of the Opposition, as the case may be, shall make a report to the House. Matters reported shall be presented before the House for action as though reported by any other Committee.

(6) The Committee shall have power to require the attendance of any person or summon production of papers, record from any Ministry, Division, department, autonomous body, semi-autonomous body or organization, or examine such persons on oath or solemn affirmation, or invite or summon any person to give evidence in relation to any matter under its consideration.”.

- (4) that in rule 194, for sub-rule (1), the following shall be substituted, namely:—

“(1) Where the Senate has not fixed any time for the presentation of a report, the report of a Committee shall be presented within sixty days from the date on which reference was made to it by the Senate:

Provided that the House may, on a motion for extension of time, moved before the expiry of time fixed by the Senate or within sixty days, allow that the time for presentation of the report be extended to a date specified in the motion:

Provided further that if the House is not in session or is not likely to re-assemble till after the expiry of the date fixed for the presentation of the report, the Chairman in his Chamber may grant the required extension of time on behalf of the House and the House shall be informed of such extension of time as soon as it re-assembles.

Explanation.—For the purposes of motion for extension of time, it shall be the responsibility of the Secretary Committee to initiate the process well before time.”.

- (5) that after rule 265, the following new rule shall be added, namely:—

“265A. Periodical reports by Ministers on matters referred by the House.—(1) Ministers concerned shall, after every three months, appear before the House and make reports on all matters referred by the House and recommendations made by Committees.

Explanation.—The time period of three months contemplated in this rule shall be computed from commencement of Parliamentary

Year *i.e.* 12th March of every year, accordingly, reports shall be due in June, September, December and March.

(2) The time for making reports shall be allotted on different days in rotation to the Ministers concerned as the Chairman may, from time to time, specify.

(3) The Senate Secretariat shall, on monthly basis, issue a consolidated list of matters referred by the House and recommendations made by Committees.”.

[No. F. 28(1)/2013-Legis.]

AMJED PERVEZ,
Secretary.